

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

Purchased:

-----X
ANDREW MENDEZ,

Plaintiff designates Bronx County as
the place of trial

Plaintiff,

The basis of the venue is where the
tort arose and where Plaintiff resides

-against-

CITY OF NEW YORK, JANERT GIL, OLAHSHIN
WILLIAMS, ANTHONY LOFARO, JEREMY VEIT
and JOHN or JANE DOES 1-10,

SUMMONS

Defendants.

-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 10, 2020

/s/ Samuel C. DePaola

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

JANERT GIL OF THE 48th PRECINCT
SHIELD NO.18305,
450 Cross Bronx Expy
Bronx, NY 10457

OLAHSHIN WILLIAMS OF THE 48th PRECINCT
SHIELD NO. 013211
450 Cross Bronx Expy
Bronx, NY 10457

ANTHONY LOFARO OF BRONX SVS
One Police Plaza
New York, NY 10007

JEREMY VEIT OF THE 44th PRECINCT
2 East 169th Street
Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANDREW MENDEZ,

Plaintiff,

Index No.

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, JANERT GIL, OLAHSHIN
WILLIAMS, ANTHONY LOFARO, JEREMY VEIT
and JOHN or JANE DOES 1-10,

Defendants.

-----X

Plaintiff, ANDREW MENDEZ, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The following claims arise from a May 3, 2018 incident, in which defendants, acting under color of state law, unlawfully stopped, searched, questioned, assaulted, battered, arrested and detained Mr. Mendez, in the vicinity of Westchester Avenue and Forest Avenue, County of Bronx, City and State of New York. Mr. Mendez was subsequently falsely and maliciously charged with an array of criminal offenses, including Sex Trafficking. Mr. Mendez was wrongfully and unlawfully detained over the course of eight (8) months, until all the criminal charges were unconditionally dismissed and sealed on December 11, 2018, before the Hon. Judge L. Busching, then a judge of the Bronx County Criminal Court.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff, ANDREW MENDEZ (“Mr. Mendez”), resides in Bronx County, within the City and State of New York.

4. Defendant, City of New York (“City”), is a municipal corporation organized under the laws of the State of New York.

5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (“NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

7. Defendant Police Officer Janert Gil (“Gil”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Gil was, at the times relevant herein, a police officer under Shield No. 18305, in the 48th Precinct, located at 450 Cross Bronx Expressway, Bronx, New York 10457. Defendant Gil is being sued in his/her individual and official capacities.

8. Defendant, Olahshin Williams (“Williams”), was, at all times here relevant, a police officer or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Williams was, at the times relevant herein, a police officer or detective, under Shield No. 013211, in the 48th Precinct, located at 450

Cross Bronx Expressway, Bronx, New York 10457. Defendant Williams is being sued in his/her individual and official capacities.

9. Defendants, Jeremy Veit and Anthont Lofaro, were at time here relevant, employed by the NYPD as detectives or police officers, and as such was acting in the capacities of agents, servants and employees of the City of New York. Defendants, Jeremy Veit and Anthont Lofaro, are being sued in their official and individual capacities.

10. At all times relevant Defendants John or Jane Does 1 through 10 were police officers, detectives, supervisors, policymakers or officials employed by the NYPD or City of New York. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John or Jane Does 1 through 10, as such knowledge is within the exclusive possession of the defendants.

11. At all times relevant herein, Defendants John or Jane Does 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Does 1 through 10 are being sued in their individual and official capacities.

12. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

13. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.

14. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

15. Plaintiff has complied with the municipal defendant's request for oral examination, pursuant to GML Section 50-h, or such request was not timely noticed.

FACTUAL CHARGES

16. On May 3, 2018, at approximately 2:30 a.m., in the vicinity of Westchester Avenue and Forest Avenue, within Bronx County and the State of New York, Mr. Mendez was in obedience of all laws, while he was a passenger in taxi.

17. On said date, time and location, plaintiff was in the process of paying the taxi driver, when he was violently grabbed and forcibly removed from the taxi by defendants, including Gil, Williams, Veit and Lofaro, who had no probable cause or other legal justification to do so, as plaintiff had not violated any law, statute, rule or regulation.

18. Plaintiff was then removed to an unknown NYPD detainment center, where he was subjected to unlawful custodial interrogations and strip-searches by or at the direction of defendants, including Gil, Williams, Veit and Lofaro,

19. Defendants, including Gil, Williams, Veit and Lofaro, never possessed a valid arrest warrant authorizing the arrest of Mr. Mendez.

20. Defendants, including Gil, Williams, Veit and Lofaro, threatened and coerced plaintiff to admit to various crimes, including felonious criminal possession of controlled substances, despite their full knowledge that plaintiff was innocent of all charges.

21. Defendants, including Gil, Williams, Veit and Lofaro, threatened to have plaintiff prosecuted for various sex crimes, if plaintiff did not falsely confess to the possession of the controlled substances.

22. When plaintiff refused, Defendants, including Gil, Williams, Veit and Lofaro, conspired with female individuals, who had agreed to make false sex trafficking allegations against plaintiff in exchange for preferential treatment by the NYPD and City of New York.

23. To further their conspiracy defendants, Defendants, including Gil, Williams, Veit and Lofaro, agreed to not arrest or investigate the female complaining witnesses for other alleged crimes.

24. Defendants, including Gil, Williams, Veit and Lofaro, stopped, arrested and subsequently caused plaintiff to be prosecuted, because of their desire to conceal their roles or the roles of other NYPD officers in a previous incident involving plaintiff, namely when he was violently struck by an NYPD police vehicle, while riding his bicycle and caused to sustain traumatic brain injuries.

25. Defendants, including Gil, Williams, Veit and Lofaro, intended to keep plaintiff wrongfully detained and damage his credibility, so that he would not be able to bring a lawsuit against them or other NYPD officers, regarding the previous incident, which would very likely adversely affect the careers of defendants or of other NYPD officers known to defendants.

26. Defendants, including Gil, Williams, Veit and Lofaro, were never informed by any witnesses that Mr. Mendez committed crimes or violations of the law, including Sex trafficking or compelling prostitution.

27. Defendants, including Gil, Williams, Veit and Lofaro, fabricated evidence in the form of false criminal allegations that they attributed to unwitting or conspiring civilian witnesses.

28. As a result of said fabrications, plaintiff was caused to remain incarcerated over the course of eight (8) months.

29. Plaintiff was not released, until all charges were summarily and unconditionally dismissed on December 11, 2018.

30. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs

within the NYPD that resulted in Plaintiff's arrest, physical injuries and malicious prosecution without probable cause or justification

31. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

32. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in the extreme use of excessive force against plaintiff.

33. The Special Victims Division of the NYPD has an extremely troubled and concerning recent history, regarding its investigation into allegations similar to those that were falsely aimed at plaintiff. Within the last two years, said division has been investigated by the NYPD's internal affairs unit, which resulted in the forced resignation of the division's commanding officers and the reassignment of other officers. Said division was also discovered to have withheld Brady material, which resulted in criminal charges being dismissed against disgraced movie mogul Harvey Weinstein. The division has been raided at least three (3) times within the last two years by IAB's most prestigious investigatory unit and it is widely believed that IAB uncovered serious misconduct, although the City has refused to release any further information about the investigation or the officers involved.

34. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.

35. Upon information and belief, Defendant City knew, or should have known about the individual defendants' severe character deficiencies and clear unsuitability for employment as police officers, or for employment in general, because of information within the officers' personnel files, psychological evaluations, job performance assessments, civilian complaints, filed lawsuits or notices of claims, internal investigations, internal complaints, or the personal observations of supervisors.

36. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations or a severe ignorance of the very laws the defendant officers are employed to enforce that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD officers and/or supervisors and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Mendez.

37. As a direct and proximate result of the acts of defendants, including Gil, Williams, Veit and Lofaro, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, neurological injuries, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

First Amendment Retaliation Claim Under
New York State Law

38. The above paragraphs are here incorporated by reference as though fully set forth.

39. Plaintiff engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

40. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

41. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

42. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

43. Accordingly, plaintiff's right to engage in protected speech and activities, guaranteed and protected by the First Amendment to the United States Constitution and Article I, Section 8, of the New York State Constitution, were violated by defendants.

44. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

45. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

46. The above paragraphs are here incorporated by reference as though fully set forth.

47. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

48. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

49. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

50. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

51. Accordingly, plaintiff's right to engage in protected speech and activities, guaranteed and protected by the First Amendment to the United States Constitution and Article I, Section 8, of the New York State Constitution, were violated by defendants.

52. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

53. The above paragraphs are here incorporated by reference as though fully set forth.

54. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

55. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

56. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

57. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

58. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution.

59. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

60. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

61. The above paragraphs are here incorporated by reference as though fully set forth.

62. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

63. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

64. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

65. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

66. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

68. The above paragraphs are here incorporated by reference as though fully set forth.

69. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

70. Plaintiff was conscious of his confinement.

71. Plaintiff did not consent to his confinement.

72. Plaintiff's arrest and false imprisonment was not otherwise privileged.

73. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

75. The above paragraphs are here incorporated by reference as though fully set forth.

76. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

77. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

78. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

79. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

80. The above paragraphs are here incorporated by reference as though fully set forth.
81. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
82. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
83. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
84. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

85. The above paragraphs are here incorporated by reference as though fully set forth.
86. The Defendants, acting under color of state law, violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
87. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
88. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

89. The above paragraphs are here incorporated by reference as though fully set forth.

90. Defendants initiated the prosecution against Plaintiff.

91. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

92. Defendants acted with malice.

93. The prosecution was terminated in Plaintiff's favor when the criminal charges were unconditionally dismissed and sealed.

94. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

96. The above paragraphs are here incorporated by reference as though fully set forth.

97. Defendants, acting under color of state law, initiated the prosecution(s) against Plaintiff.

98. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution(s) would succeed.

99. Defendants acted with malice.

100. The prosecution was terminated in Plaintiff's favor when all the criminal charges were unconditionally dismissed and sealed.

101. Accordingly, Defendants violated Plaintiff's Fourteenth Amendment rights.

102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

103. The above paragraphs are here incorporated by reference as though fully set forth.
104. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
105. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
106. Defendants intended to inflict substantial harm upon Plaintiff.
107. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
108. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
109. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

110. The above paragraphs are here incorporated by reference as though fully set forth.
111. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
112. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
113. Defendants intended to inflict substantial harm upon Plaintiff.

114. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

115. Defendants' actions deprived Plaintiff of his rights under the Fourth and Fourteenth Amendments to United States Constitution.

116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

117. The above paragraphs are here incorporated by reference as though fully set forth.

118. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded that false information to the Bronx County District Attorney's Office.

119. Defendants' actions deprived Plaintiff of his liberty and freedom of movement after his criminal court arraignment by causing plaintiff to remain incarcerated against will.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

121. The above paragraphs are here incorporated by reference as though fully set forth.

122. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded that false information to the Bronx County District Attorney's Office.

123. Defendants fabricated false evidence to be used against Plaintiff and then forwarded that false information to prosecutors.

124. Defendants' actions deprived Plaintiff of his post-arraignment liberty and freedom of movement by causing plaintiff to remain in unjust and unwarranted confinement against his will.

125. Accordingly, defendants violated plaintiff's right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

127. The above paragraphs are here incorporated by reference as though fully set forth.

128. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, to the equal protection of the laws, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

129. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

130. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

131. Defendants' conspiracy was motivated by a desire to inhibit or punish Plaintiff for exercising his constitutional rights, or because of some racial, otherwise class-based, invidious or discriminatory animus.

132. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

133. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

135. The above paragraphs are here incorporated by reference as though fully set forth.

136. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

137. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

138. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

139. The above paragraphs are here incorporated by reference as though fully set forth.

140. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

141. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

142. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

144. The above paragraphs are here incorporated by reference as though fully set forth.

145. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

146. Defendant City breached that duty of care.

147. Defendant City placed defendants in a position where they could inflict foreseeable harm.

148. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

149. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

150. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

151. The above paragraphs are here incorporated by reference as though fully set forth.

152. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

153. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

154. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.

155. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.

156. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

157. Defendant City’s conduct caused the violation of plaintiff’s civil rights enumerated within the Constitution of the United States.

158. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - t) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - u) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988 and the New York Civil Rights Law;
- Together with the costs and disbursements of this action.

Dated: Bayside, New York
March 10, 2020

/s/ Samuel C. DePaola
SIM & DEPAOLA, LLP
By: Samuel C. DePaola
Attorneys for Plaintiff
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Bayside, NY 11361
T: (718) 281-0400
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sdepaola@simdepaola.com

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney duly admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 10, 2020

/s/ Samuel C. DePaola
Samuel C. DePaola, Esq.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ANDREW MENDEZ,

Plaintiff,

-against-

CITY OF NEW YORK, JANERT GIL, OLAHSHIN WILLIAMS, ANTHONY LOFARO,
JEREMY VEIT and JOHN or JANE DOES 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
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Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for